

RODOLFO AMAYA v. BAY CITIES ASPHALT INC.
Case No: CU25-03513

Motion for Approval of PAGA Settlement

TENTATIVE RULING:

The unopposed motion for approval of PAGA settlement is DENIED without prejudice.

The caption in the underlying complaint in this action is for the individual claim of Plaintiff AMAYA and alleges wrongful termination causes of action as well as wage and hour causes of action for Mr. AMAYA. The caption does not reflect that suit was filed in AMAYA's representative capacity and fails to provide that notice to the court or the public. Consistent with this representation, and the civil case cover sheet filed by Plaintiff indicating the matter was not a complex matter, Plaintiff was not charged a complex filing fee.

While the court appreciates that the allegations of the complaint may have provided notice to Defendant of the intent to pursue representative PAGA claims, procedurally the complaint as currently plead is for AMAYA's individual claims alone.

The denial is without prejudice. Plaintiff may file an amended complaint, satisfy complex case filing fees, and re-submit this motion.

STEWART v. SIX FLAGS DISCOVERY KINGDOM, ET AL.
Case No. CU25-06137

Motion for Undertaking

TENTATIVE RULING:

Defendant's motion for undertaking is DENIED.

Defendant has not met its burden of demonstrating that there is a reasonable possibility that it will obtain judgment in the action. (Code Civ. Proc. § 1030(b); *Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, 1432.)

Defendant relies only on its defense that the dangerous condition that caused Plaintiff's injury was open and obvious. But, there is an exception to the rule "when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition." (*Kaney v. Custance* (2022) 74 Cal.App.5th 201, 215, quoting *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 447.) "[I]f the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that under the circumstances, a person might choose to encounter the danger", it is foreseeable that an obvious danger may cause injury. (*Osborn v. Mission Ready Mix* (1990) 224 Cal.App.3d 104, 121.) And, while the obviousness of a hazard may obviate the duty to warn of its existence, there may still be a duty to remedy the danger. (*Martinez v. Chippewa Enters., Inc.* (2004) 121